

Legal memo – proposed dismissal of Emma Vandenberghe

To: Tom Verhaegen, Catherine Lemaire – **From:** Isabelle Moreau

1. Emma filed a **formal request for psychosocial intervention on 18/11/2025**. She is protected against retaliation for **12 months** from that date (art. 32tredecies Law of 4/8/1996), i.e. until 18/11/2026.
2. During that period we must be able to prove that the dismissal is based on **reasons unrelated to the request**. The burden of proof is on the employer.
3. "Restructuring": the team keeps the same headcount – REQ-2026-044 opens a replacement position. This argument will not hold.
4. "Performance": the only negative rating is the June 2025 review written by Bart Willems, the accused person, which the prevention adviser recommended to review. Her 2026 mid-year by Annelies is "Meets".
5. **Risk: high**. Protection indemnity = 6 months' gross salary (≈ €18,900) + possible damages. **I advise against dismissal before 18/11/2026** and without an independent performance record.